

IFSO

21/1/25

Insh. Navesh Malik

Case Information Format

District	
Criminal	☒
Civil	☒

S.NO.	PLAINTIFF / PETITIONER / COMPLAINANT / APPELLANT / DECREE HOLDER ETC. (please fill up all the relevant fields & (*) fields are mandatory)	
1.	* Name of Plaintiff / Complainant etc.	STATE
2.	* S/o, W/o, D/o	
3.	* Address	
4.	* Aadhar Card No.	
5.	* Gender	Male ☒ Female ☒ Other ☒ Pin Code
6.	Date of Birth	DD MM YYYY *Age
7.	Mobile No./Email Id	MOBILE NO. E-MAIL ID IN CAPITAL LETTERS
8.	* Act / Section	
9.	Valuation of Suit	Court Fee ascertained: Court Fee paid/deposited:
10.	* Police Station	IFSCO CYBER
11.	* F.I.R. No. & Year	538/24

S.NO.	DEFENDANT / ACCUSED / RESPONDENT / APPELLANT / JUDGMENT DEBTOR ETC. (please fill up the relevant fields)	
1.	* Name of Defendant / Accused etc.	AKASH HARIDAS KATARE
2.	* S/o, W/o, D/o	HARIDAS KATARE
3.	* Address	
4.	* Aadhar Card No.	
5.	* Gender	Male ☒ Female ☒ Other ☒ Pin Code
6.	Date of Birth	DD MM YYYY *Age
7.	Mobile No./ Email Id	MOBILE NO. E-MAIL ID IN CAPITAL LETTERS

CONNECTED MATTER, IF ANY	CASE DETAILS (viz. CIS REGISTRATION No. / CASE TITLE)	PENDING IN THE COURT OF
PENDING MATTER ☒	CIS REGISTRATION No.	ANIL K. SINGH
FRESH MATTER ☒	STATE V/S AKASH KATARE CASE TITLE	COMPTROLLER HOUSE COURT

S. No.	ADVOCATE FOR PLAINTIFF / COMPLAINANT / PETITIONER / DECREE HOLDER ETC.	
1.	* Name of Advocate	SANTOSH SINGH
2.	* Address	Chamber Seat Near 102 Chamber Near Poshil Typist Poshil House Court
3.	* Mobile No / E-mail Id	992467833

Submitted By: -

(Plaintiff / Petitioner / Defendant / Accused / others / Advocate)

①

**IN THE COURT OF SHRI ANUJ KUMAR SINGH, LEARNED
CJM, PATIALA HOUSE COURT, NEW DELHI**

IN THE MATTER OF:

STATE .

VS. AKASH HARIDAS KATARE

S/o HARIDAS KATARE

FIR No.538/2024

U/s 318/319/61(2) BNSS

P.S. SPECIAL CELL (IFSCO) CYBER

DATE OF ARREST: 06.12.2024

APPLICATION FOR GRANT OF BAIL ON BEHALF OF ABOVE

NAMED APPLICANT/ ACCUSED AKASH HARIDAS KATARE

U/S 480 BNSS ACT.

MOST RESPECTFULLY SHOWETH:-

1. That the above said accused was arrested on 06.12.2024 and then sent to PC remand and after that he was sent to judicial custody and since then he is behind bars for a period of 41 days which is very much harsh for him in the above said offence which he never done intentionally.

2. That the above said accused has been wrongly implicated in this case wherein the notice U/s 35(3) and the ground of arrest was made him signed when he was produced before this Hon'ble Court and an objection was made by the counsel regarding the notice and grounds of arrest so the police official made these documents signed outside the court and then made this accused present before the Hon'ble Court which was strongly argued before the court that improper procedure was followed by the investigation official and hiding the procedural aspects of the case the police has wrongly implicated Akash Haridas Katore in this case as he has nothing to do with this offence in any manner whatsoever presented before this Hon'ble Court as he is a poor person and just a victim of circumstances and nothing else remains to keep him behind bar for longer time duration as he has already painfully managed to carry on the custody of such a long time duration of 41 days.
3. That the police wrongfully implicated the present accused in a wrongful case even after knowing that he is

(3)

innocent and if he won't provide them with any other credible information about the case, the accused will be behind the bars for a consideration long time duration, and this is the very condition happening with the accused as the family of the accused is poor and so they do not have money to fulfill the wishes of the police people and so he is behind the bars even after completion of the investigation of the whole case then to he has been harassed by the illegal demands of police officials just to keep him behind the bars and fulfill their illegal demands.

4. That the accused was arrested from Ahmedabad and without carrying any notice or any procedural aspects of the case the police wrongfully took the custody of him and took him to Delhi and presented wrongfully before this Hon'ble Court without signing any documents prior notice to join the investigation or without giving 35(3) B.N.S. Act notice to the accused for the investigation of the case, neither any further guidelines were followed by the police regarding the reasoning of arrest, as the

(4)

Supreme Court in various judgement already given proper guidelines regarding notice and ground of arrest which has to be explained to the accused before his arrest. The accused if given notice then too it is totally manipulated and after thought preparation of the papers of the police officials just to make a strong case against the accused to fulfill the ulterior motive of the police officials in the terms of money.

5. That the applicant is very poor person and citizen of India and permanent resident of Gujarat, Ahmedabad.
6. That the applicant is aged about 25 years and is the only earning members of the family and having old aged ailing sisters and younger brother.
7. That the applicant previously not involved in any sort of criminal and has nothing to do with the alleged offence.
8. That the applicant is willing to abide by each and every condition which may be imposed upon him while granting him bail.
9. That no useful purpose will be served if the applicant is behind the bar.

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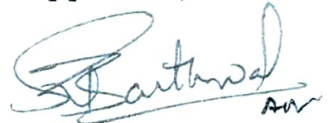
10. That the applicant / accused undertakes to appear before this Hon'ble Court on each and every date of hearing if granted him bail.
11. That the applicant/ accused undertakes to furnish sound surety to the satisfaction of this Hon'ble Court.

PRAYER

It is, therefore most respectfully prayed, that this Hon'ble Court may be pleased to grant bail to the applicant, till the final disposal of the case and in the interest of justice.

Applicant/Accused

Through:


ANR

Santosh Singh Barthwal
Advocate

Near Ch. No. 107, Seat,
Near Joshiji Typist,
Patiala House Courts,
New Delhi-110001
Mob No. 9971468838

New Delhi

Dated: 17.01.2025

(9)

FIR No. 538/24 dated 27.11.24 u/s 318/319/61(2) BNS P.S. Special Cell New Delhi

GROUND AND REASON OF ARREST

Complainant Sh. Arun Kumar Jain was joined in WhatsApp groups (1) Bajaj Finserv- Bajaj SST-XAI INTERNATIONAL and (2) Saif India stock-VIP 205 wherein he was tutored regarding investment and trading with exorbitant profits. He received a link and was coerced to download the application for online trading, where stocks were displayed at a price and when sold, good profit was shown on the platform. He started making payments on their inducement of exorbitant profits and transferred Rs. from his two bank accounts (1) RBL Bank- Acc. No. 309811041129- and (2) AXIS Bank - Acc. No. 5719609227- to 26 different bank accounts, out of which Rs. 2 Crores was transferred in the account of KATRA WHEEL ALIGNMENT AND SERVICE bearing a/c # 777705271127 at ICICI Bank IFSC Code ICICI0000844.

As per KYC documents provided by the bank, the said account was opened by you, Akash Haridas Katare S/o Haridas Katare R/o 29/11 Satyam Flat opposite Mohan Nagar Bapu Dham Nagar Ahmedabad Gujrat. After receipt of cheated money, proceeds of crime were siphoned off through several bank accounts in multiple layers. Therefore, there are reasonable grounds warranting your arrest for custodial interrogation in the present case being account holder of beneficial bank account directly.

Since, crime under investigation has been committed in a very organized manner involving accused persons overseas, therefore, for furtherance of investigation and to unearth the deep-rooted conspiracy and to identify the crime syndicate and to recover the material evidence, your arrest is deemed necessary. Also, the evidence/ data in cyber crime is fragile in nature and the same can be deleted remotely. Hence in order to avoid the destruction of digital evidence, your arrest is deemed necessary in the interest and for furtherance of investigation.

Akash Haridas Katare S/o Haridas Katare
R/o 29/11 Satyam Flat opposite Mohan Nagar
Bapu Dham Nagar Ahmedabad Gujrat


Insp. Naresh Malik
IFSO/Spl Cell
New Delhi

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IN THE HON'BLE COURT OF SH. ANJU KUMAR SINGH LD. CJM
PATIALA, HOUSE COURT NEW DELHI

FIR No 538/24, Dated- 27/11/24,
U/S- 318/319/61(2),
PS Special Cell Delhi.

State V/s.

1. Pumbhadiya Shaivin Girdhar Bhai S/o Girdhar Bhai Daya Pumbhadiya r/o H. No A-44, Avdhut Nagar Society, Near – Dhanmondi, Surat Gujrat. **Age- 24 yrs**
2. Prateek Rawal S/o Arvind Bhai, R/o H.No – 22, Ratna Malo Apartment, Ambika Nagar, katargram Surat Gujrat. **Age- 23 yrs**
3. Akash Haridas Katare S/o Haridas Katare, R/o H.No 29/11, Satyam Flat opp – Mohan Ngar Bapu dham nagar, Ahmadabad, Gujrat. **Age- 31 yrs**

DOA -06.12.2024

Subject: - Request for granting 07-day Police custody remand.

Hon'ble Sir,

Most respectfully, submitted that, the said case was registered on the complaint of Mr. Arun Kumar Jain wherein, he has alleged that he is a victim of online investment fraud. The fraudsters cheated him on the pretext of investment in stock market. Complainant has alleged that has lodged a complaint regarding a stock trading fraud perpetrated through WhatsApp. The scam involved two groups: Bajaj Finserv- Bajaj SST-XAI INTERNATIONAL and Saif India stock-VIP 205. In the month of July 2024, complainant joined the Bajaj Finserv- Bajaj SST-XAI INTERNATIONAL group and August 24, 2024, joined the Saif India stock-VIP 205 group.

Later on, complainant had invested a total of Rs 18.86 Crores in 26 bank accounts with these people through 43 transactions. Initially, he got small amount which he withdrew and thus gained confidence. When he tried to withdraw the funds but they rejected his withdrawal without any reason and started making excuse. At this point, he realized that he have been scammed over and they are not going to return my money. He requested them a lot to return at least his investment amount but they simply keep on asking more money. He requested them a lot to return at least his investment amount but they simply keep on asking more money.

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During course of investigation raid was conducted in Surat Gujrat to trace the accused person. Investigation revealed that out of Rs. 18.86 Crores, cheated money amounting to Rs. 57,00,000/- was transferred in the account of GSB ENTERPRISES ENTERPRISE bearing a/c # 018521010000317 at Union Bank of India Surat Branch IFSC Code UBIN0901857. As per KYC documents provided by the banks, the said account was opened by accused No. 1 Pumbhadiya Urashabhai Girdharbhai S/o Urashabhai Girdharbhai R/o A/44, Avadhut Nagar, SOC, Katargam, Singanipor Road, Surt, Gujrat 39500. Further, Mobile No. 9724025437, 6353880580, PAN No. EMDPP8076A, Address A 44 Avadhut, Nagar Society Katargam Singanpore Road Surat-395004 Gujarat, India AND Email ID SHAIVINPUMBHADIYA1@GMAIL.COM

That Investigation further revealed that out of Rs. 18.86 Crores, cheated money amounting to Rs. 2 Cr Rs. Was transferred in a/c No- 777705271127 on dated 01/11/24 which was registered in the name of firm KATARE WHEEL ALIGNMENT AND SERVICED bearing a/c # 777705271127 of ICICI Bank of India Ahmedabad Branch IFSC Code ICICI0000844. Said account was opened by accused Akash Haridas Katare S/o Haridas Katare, R/o H.No 29/11, Satyam Flat opp – Mohan Ngar Bapu dham nagar, Ahmadabad, Gujrat. Age- 31 Yrs, Further, Mobile No. 9662111056, PAN No. DJLPK5646H, India AND Email ID AKASHKATARE03@GMAIL.COM

Further it is submitted that after receipt of cheated money, proceeds of crime were siphoned off through several bank accounts in multiple layers. Therefore, after getting all the details and the address of the alleged account holders through technical surveillance. The permission for the raid was obtained. On dated 06.12.2024 a raid was conducted at the address A/44, Avadhut Nagar, SOC, Katargam, Singanipor Road, Surt, Gujrat 39500. Where accused Pumbhadiya Urashabhai Girdharbhai S/o Urashabhai Girdharbhai was served with notice u/s 35(3) BNSS and taken to PS- Chawk Bazar, Surat GJ, where he stated during interrogation about his co-alliances Prateek Rawal S/o Arvind Bhai and some Bhavik Srivastva to whom he used to sell the alleged accounts for 12 Rs. The accused Prateek Raval was called to PS- Chawk Bazar, while other co-alliance did not come. The accused Prateek Raval was also served with notice u/s 35(3) BNSS at PS to join the investigation.

During investigation, accused Akash Haridas Katare S/o Haridas Katare was traced in Surat. After tracking the same he was also found and served with notice u/s 35(3) BNSS to join the investigation at PS- Chawk Bazar. At the PS he stated that he

sell the alleged account to his Known Viraj Rajender Bhai Pette in promised amount of 2% of transferred amount, but he got only 20000/Rs. Who will be interrogated during investigation and needs to be confronted with accused.

Further it is submitted that above mentioned persons were interrogated, during the course of the investigation a lot of facts surfaced and to investigate the same accused persons did not co-operate in investigation and there were reasonable grounds warranting all persons' arrest for custodial interrogation, therefore, in the present case being account holders of beneficial bank account directly. Accused persons Pumbhadiya Shaivin Girdhar Bhai S/o Girdhar Bhai Daya Pumbhadiya, Akash Haridas Katare S/o Haridas Katare, while other accused Prateek Rawal S/o Arvind Bhai who was the buyer and user of the alleged account, were arrested in present case.. Since, crime under investigation has been committed in a very organized manner involving accused persons overseas, therefore, for furtherance of investigation and to unearth the deep-rooted conspiracy and to identify the crime syndicate and to recover the material evidence, arrest was deemed necessary. Also, the evidence/ data in cyber-crime are fragile in nature and the same can be deleted remotely. Hence in order to avoid the destruction of digital evidence, arrest of accused persons was deemed necessary in the interest and for furtherance of investigation.

It is further stated that the accused persons are part of a crime syndicate and their custodial interrogation and confrontation with each other and other persons is essentially required to unearth the deep-rooted conspiracy to cheat the complainant and other persons. There are multiple transactions in the accounts opened by them and some other persons might have been cheated. Hence, their further interrogation to identify the related persons and to explain other transactions is essentially required.

That accused persons are brought to Delhi today itself after their arrest on 06.12.24 and obtaining transit remand from Surat Court. Hence, their detailed interrogation about their crime syndicate and modus operandi in opening of said bank accounts and its use at overseas locations is also required.

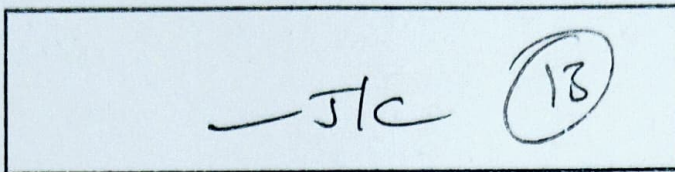
That accused persons also got opened other bank accounts and the data is being obtained and they need to be confronted with the same for furtherance of investigation. Accused Pumbhadiya Shaivin Girdhar Bhai and Prateek Rawal

disclosed opening of 9 and 5 other bank accounts and account credentials were sold to one Bhavik Srivastave, who is yet to be traced. Hence, they need to be taken Surat, Ahmedabad and Udaipur to trace the co-accused persons involved in the commission of crime.

In view of above police custody of accused persons is required to furtherance of investigation, their confrontation with voluminous bank record related to the bank accounts opened by them and used in commission of crime, to unearth deep rooted conspiracy and to identify/ trace their associates involved in the crime syndicate in commission of crime repeatedly and to identify/ trace the co-accused through who they are connected with cyber criminals operating overseas in an organized manner. It is therefore requested that the accused persons may be remanded to 7 days PC in the interest of investigation.

Submitted please

Insp. Naresh Malik
IFSO/Special Cell
New Delhi.
9.12.24



C.C. No.
FIR No. 528/24
U/S 318/319/61(2)
P.S. Special Cell Daus

IN THE COURT OF Shri Anuj K. Singh, CJM Post-6.12.24
Sult / Appeal No. _____ New Delhi
IN re :- _____ JURISDICTION OF 202

_____ Plaintiff(s) or Petitioner(s)
Appellant(s) Complainant(s)

VERSUS

Akash Haridas Katane Defendant(s) / Respondent(s) / Accused

KNOW ALL to whom these present shall come that I / We S/O Haridas Katane
R/o 29/11, Satyam Flat Opp. Mahan Nagar Bapu
Dharm Nagar Dharmdahan do hereby appoint

SANTOSH SENI
BARTHWAL ADVOCATE
D/1291 A/02
99748 8877

(herein after called the advocate/s to be my/our Advocate in the above-noted case authorize him:-

To act, appear and plead in the above-noted case in this court or in any other court in which the same may be tried or heard and also in the appellate court including High court subject to payment of fees separately for each court by me/us.

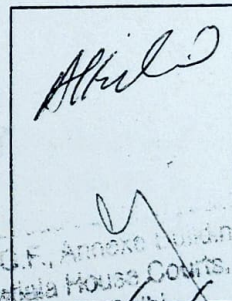
To sign file, verify and present pleadings, appeals cross-objections or petitions for executions review, revision, withdrawal, compromise or other petitions or affidavits or other documents as may be deemed necessary or proper for the prosecution of the said case in all its stages subject to payment of fees for each stage.

To file and take back documents, to admit and/or deny the documents or opposite party.

To withdraw or compromise the said case or submit to arbitration any differences or disputes that may arise touching or in any manner relating to the said case.

To take execution proceedings on paying separate fee.

To deposit, draw and receive money, cheques, case and grant receipts hereof and to do all other acts and things which may be necessary to be done for the progress and in the course of the prosecution on the said case.



To appoint and instruct any other Legal Practitioner authorizing him to exercise the power and authority hereby conferred upon the Advocate whenever he may think fit to do so and to sign the power of attorney on our behalf.

And I / We the undersigned do hereby agree to ratify and confirm all acts done by the Advocate or his substitute in the matter as my/our own facts, as if done by me/us to all intents and purpose.

And I/We undertake that I / We or my/our duly authorised agent would appear in court and all hearings and will inform the Advocate for appearance when the case is called.

And I/We undersigned do hereby agree not to hold the advocate of his substitute responsible for the result of the said case. The adjournment costs whenever ordered by the court shall be of the Advocate which he shall receive and retain for himself.

And I/We undersigned do hereby agree that in the event of the whole or part of the fee agreed by me/us to be paid to the advocate remaining unpaid he shall be entitled to withdraw from the prosecution of the said case until the same is paid up. The fee settle is only for the above case and above Court. I/We hereby agree that once the fee is paid, I/We will not be entitled for the refund of the same in any case whatsoever and if the case prolongs for more than 3 years the original fee shall be paid again by me/us

IN WITNESS WHERE OF I/We do hereunto set my/our hand to these presents the contents of which have

been understood by me / us on this 9/12/24 day of _____ 202
Accepted subject to the terms of the fees

S. Barthwal
Ani
Advocate

Client

Client

I Identify the Signature/Thumb Impression of the Below Mentioned Person,
Who Has been Signed in my presence. The Client.